

Exhibit B – Copy of Order of Taking (Page 3)

TOWN OF BOXFORD
SPECIAL TOWN MEETING MINUTES
TUESDAY, OCTOBER 23, 2007

ARTICLE 12. To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of \$25,000 to fund a feasibility study on the possible expansion, renovation, addition and/or re-construction of the Boxford Community Center, said funds to be expended under the direction of the Board of Selectmen; or take any other action thereon.

Sponsored and supported by the Selectmen and
Community Center Building Committee
Finance Committee does not recommend adoption of this article
Capital Budget Committee Recommendation: "D" Does not recommend

Upon a motion made and duly seconded, it was VOTED by majority hand count of 164 Yes and 111 No; to transfer from free cash the sum of \$25,000 to fund a feasibility study on the possible expansion, renovation, addition and/or re-construction of the Boxford Community Center, said funds to be expended under the direction of the Board of Selectmen.

ARTICLE 13. To see if the Town will vote to authorize the Board of Selectmen to acquire by purchase, gift, eminent domain, or otherwise all or a portion of a parcel of land on Middleton Road, Boxford, Essex County, Massachusetts, being a portion of the property known as the Haynes property, described as lot 2 on a plan of land titled: "Sketch Plan Showing Lots 1, 2 and Parcel A in Boxford, Mass.", Prepared for Elmlea Partnership Trust, dated July 10, 2007, drawn by Neve-Morin Group, Inc., on file with the Town Clerk together with all flowage rights and easements and subject to all well rights and easements; that said land be conveyed to the Town of Boxford under the provisions of Massachusetts General Laws, Chapter 44B, as it may hereafter be amended; said land to be under the care, custody, management and control of the Boxford Board of Selectmen; and held for one or more of the purposes authorized under the Community Preservation Act:

- a. Acquisition, creation, and preservation of open space,
- b. Acquisition, preservation, rehabilitation and restoration of historic resources;
- c. Acquisition, creation and preservation of land for recreational use;
- d. Acquisition, creation, preservation and support of community housing; and
- e. Rehabilitation or restoration of open space, land for recreational use and community housing that is acquired or created as provided by M.G.L. ch. 44B (the Community Preservation Act);

A TRUE COPY
Attest: 
Town Clerk
Boxford, Massachusetts

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TOWN OF BOXFORD
SPECIAL TOWN MEETING MINUTES
TUESDAY, OCTOBER 23, 2007

and that prior to committing any portion of the property to any of the uses specified above, areas of the property designated for specific uses must be clearly identified and delineated by subsequent votes of Town Meeting, and that the Board of Selectmen shall appoint a subcommittee charged with developing recommendations for the use of the property; and that to fund said purchase including all costs incidental and related thereto, to appropriate the sum of \$3,300,000 or any other amount; and that to meet this appropriation the sum of \$1,300,000 be transferred from the Undesignated Community Preservation Fund balance, \$100,000 be transferred from the FY '08 Budgeted Reserve, and that the treasurer, with the approval of the Selectmen, be authorized to borrow the sum of \$1,900,000 as authorized under the Community Preservation Program pursuant to Massachusetts General Laws, Chapter 44 section 7, Chapter 44B section 11, and/or any other enabling authority; and to authorize the Board of Selectmen to grant conservation restrictions or other such perpetual restrictions, approve use restrictions, as may be permitted pursuant to the Community Preservation Act, on all or any portion of said parcel; seek, receive and accept grants, donations or reimbursements for this purpose, and/or any others in any way connected with the scope of this Article, and to enter into all agreements and execute any and all instruments as may be necessary on behalf of the Town of Boxford to affect said purchase; or take any other action thereon.

Sponsored and supported by the Board of Selectmen, Land Committee,
Recreation Committee and Community Preservation Committee
Community Preservation Committee recommends adoption of this article
Finance Committee recommends adoption of this article
Capital Budgeting Committee Recommendation: "A" Essential

NOTE: The total cost of this acquisition is \$3.25 million in land purchase price and \$100,000 in legal, debt acquisition and debt service expenses. The Town is paying the \$100,000 in acquisition expenses and \$3.2 million for the land purchase. The remaining \$50,000 land purchase expense is to be raised privately.

Amendment to Article 13 was DEFEATED by a voice vote, to strike the words; "and to authorize the Board of Selectmen to grant conservation restrictions or other such perpetual restrictions, approve use restrictions, as may be permitted pursuant to the Community Preservation Act, on all or any portion of said parcel; seek, receive and accept grants, donations or reimbursements for this purpose, and/or any others in any way connected with the scope of this Article".

Exhibit B – Copy of Order of Taking (Page 5)

TOWN OF BOXFORD
SPECIAL TOWN MEETING MINUTES
TUESDAY, OCTOBER 23, 2007

Second amendment to Article 13 was DEFEATED by a voice vote, to change the words "subsequent votes of Town Meeting" to read "subsequent 2/3 majority votes of Town Meeting".

Upon a motion made and duly seconded, it was VOTED by hand count of 253 Yes and 20 No; to authorize the Selectmen to acquire by purchase, gift, eminent domain, or otherwise all or a portion of a parcel of land on Middleton Road, Boxford, Essex County, Massachusetts, being a portion of the property known as the Haynes property, described as lot 2 on a plan of land titled: "Sketch Plan Showing Lots 1, 2 and Parcel A in Boxford, Mass.", Prepared for Elmlea Partnership Trust, dated July 10, 2007, drawn by Neve-Morin Group, Inc., on file with the Town Clerk together with all flowage rights and easements and subject to all well rights and easements; that said land be conveyed to the Town of Boxford under the provisions of Massachusetts General Laws, Chapter 44B, as it may hereafter be amended; said land to be under the care, custody, management and control of the Boxford Board of Selectmen and held for one or more of the purposes authorized under the Community Preservation Act:

- a. Acquisition, creation, and preservation of open space,*
- b. Acquisition, preservation, rehabilitation and restoration of historic resources;*
- c. Acquisition, creation and preservation of land for recreational use;*
- d. Acquisition, creation, preservation and support of community housing; and*
- f. Rehabilitation or restoration of open space, land for recreational use and community housing that is acquired or created as provided by M.G.L. ch. 44B (the Community Preservation Act);*

and that prior to committing any portion of the property to any of the uses specified above, areas of the property designated for specific uses must be clearly identified and delineated by subsequent votes of Town Meeting, and that the Board of Selectmen shall appoint a subcommittee charged with developing recommendations for the use of the property; and that to fund said purchase including all costs incidental and related thereto, to appropriate the sum of \$3,300,000 or any other amount; and that to meet this appropriation the sum of \$1,300,000 be transferred from the Undesignated Community Preservation Fund balance, \$100,000 be transferred from the FY '08 Budgeted Reserve, and that the treasurer, with the approval of the Selectmen, be authorized to borrow the sum of \$1,900,000 as authorized under the Community Preservation Program pursuant to

Exhibit B – Copy of Order of Taking (Page 6)

TOWN OF BOXFORD
SPECIAL TOWN MEETING MINUTES
TUESDAY, OCTOBER 23, 2007

Massachusetts General Laws, Chapter 44 section 7, Chapter 44B section 11, and/or any other enabling authority; and to authorize the Board of Selectmen to grant conservation restrictions or other such perpetual restrictions, approve use restrictions, as may be permitted pursuant to the Community Preservation Act, on all or any portion of said parcel; seek, receive and accept grants, donations or reimbursements for this purpose, and/or any others in any way connected with the scope of this Article, and to enter into all agreements and execute any and all instruments as may be necessary on behalf of the Town of Boxford to affect said purchase.

ARTICLE 14. To see if the Town will vote to appropriate the sum of \$720,000, or any other amount, to preserve the historic Lincoln Hall, Main Street, West Boxford Center; including all costs incidental and related thereto; said rehabilitation expenses as necessary for Lincoln Hall to continue to serve as a community meeting place, including but not limited to improvements needed to meet modern codes such as installing insulation, new heating and air conditioning systems, insulating doors and windows, installing handicapped lift and bathrooms, and updating the electrical system, and that to fund such rehabilitation, \$25,000 shall be appropriated from the Community Preservation Committee Historic Resources Reserve, \$20,000 shall be transferred from the FY '08 Budgeted Reserve, and the treasurer, with the approval of the Selectmen, shall be authorized to issue debt in the amount of \$675,000 under the Community Preservation Program for the rehabilitation of historic resources, pursuant to Massachusetts General Laws, Chapter 44B or any other enabling authority, said funds to be expended under the direction of the Community Preservation Committee and the Board of Selectmen or to take any other action thereon.

Sponsored and supported by the Board of Selectmen, Lincoln Hall
Building Committee and the Community Preservation Committee
Community Preservation Committee recommends adoption of this article
Finance Committee recommends adoption of this article
Capital Budgeting Committee Recommendation: "D" Does not recommend

A TRUE COPY

Attest Edmund Phelan

Town Clerk

Boxford, Massachusetts

Upon a motion made and duly seconded, it was **VOTED** to transfer from free cash the sum of \$6,554 to fund Boxford's share of a regional update of aerial photographs, said funds to be expended under the direction of the Board of Selectmen.

ARTICLE 11. To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of \$18,000 to fund various repair and maintenance projects on various town buildings, said funds to be spent under the direction of the Board of Selectmen; or take any other action thereon.

Sponsored and supported by the Board of Selectmen and Facilities Maintenance Committee

Finance Committee recommends adoption of this article

Capital Budget Committee Recommendation: "A" Essential

Upon motion made and duly seconded, it was **VOTED by unanimous voice** to transfer from free cash the sum of \$18,000 to fund various repair and maintenance projects on various town buildings, said funds to be spent under the direction of the Board of Selectmen.

ARTICLE 12. To see if the Town will vote to raise and appropriate, or transfer from available funds, the sum of \$25,000 to fund a feasibility study on the possible expansion, renovation, addition and/or re-construction of the Boxford Community Center, said funds to be expended under the direction of the Board of Selectmen; or take any other action thereon.

Sponsored and supported by the Selectmen and Community Center Building Committee

Finance Committee **does not** recommend adoption of this article

Capital Budget Committee Recommendation: "D" Does not recommend

Upon a motion made and duly seconded, it was **VOTED by majority hand** count of 164 Yes and 111 No; to transfer from free cash the sum of \$25,000 to fund a feasibility study on the possible expansion, renovation, addition and/or re-construction of the Boxford Community Center, said funds to be expended under the direction of the Board of Selectmen.

ARTICLE 13. To see if the Town will vote to authorize the Board of Selectmen to acquire by purchase, gift, eminent domain, or otherwise all or a portion of a parcel of land on Middleton Road, Boxford, Essex County, Massachusetts, being a portion of the property known as the Haynes property, described as lot 2 on a plan of land titled: "Sketch Plan Showing Lots 1, 2 and Parcel A in Boxford, Mass.", Prepared for Elmlea Partnership Trust, dated July 10, 2007, drawn by Neve-Morin Group, Inc., on file with the Town Clerk together with all flowage rights and easements and subject to all well rights and covenants; that said land be conveyed to the Town of Boxford under the

A TRUE COPY

Attest Ramon Phelan

Town Clerk

Amendment to Article 13 was DEFEATED by a voice vote, to strike the words: "and to authorize the Board of Selectmen to grant conservation restrictions or other such perpetual restrictions, approve use restrictions, as may be permitted pursuant to the Community Preservation Act, on all or any portion of said parcel; seek, receive and accept grants, donations or reimbursements for this purpose, and/or any others in any way connected with the scope of this article".

Second amendment to Article 13 was DEFEATED by a voice vote, to change the words "subsequent votes of Town Meeting" to read "subsequent 2/3 majority votes of Town Meeting".

Upon a motion made and duly seconded, it was **VOTED by hand count of 53 Yes and 20 No**; to authorize the Selectmen to acquire by purchase, gift, eminent domain, or otherwise all or a portion of a parcel of land on **Middleton Road, Boxford, Essex County, Massachusetts, being a portion of the property known as the Haynes property**, described as lot on a plan of land titled: "Sketch Plan Showing Lots 1, 2 and Parcel A in Boxford, Mass.", Prepared for Elmlea Partnership Trust, dated July 10, 2007, drawn by Neve-Morin Group, Inc., on file with the Town Clerk together with all easement rights and easements and subject to all well rights and easements; that said land be conveyed to the Town of Boxford under the provisions of Massachusetts General Laws, Chapter 44B, as it may hereafter be amended; said land to be under the care, custody, management and control of the Boxford Board of Selectmen and held for one or more of the purposes authorized under the Community Preservation Act:

- a. Acquisition, creation, and preservation of open space;
- b. Acquisition, preservation, rehabilitation and restoration of historic resources;
- c. Acquisition, creation and preservation of land for recreational use;
- d. Acquisition, creation, preservation and support of community housing; and
- f. Rehabilitation or restoration of open space, land for recreational use and community housing that is acquired or created as provided by M.G.L. ch. 44B (the Community Preservation Act);

and that prior to committing any portion of the property to any of the uses specified above, areas of the property designated for specific uses must be clearly identified and delineated by subsequent votes of Town Meeting, and that the Board of Selectmen shall appoint a subcommittee charged with developing recommendations for the use of the property; and that to fund said purchase including all costs incidental and related thereto, to appropriate the sum of \$1,300,000 or any other amount; and that to meet this appropriation the sum of \$1,300,000 be transferred from the Undesignated Community Preservation Fund balance, \$100,000 be transferred from the FY '08 Budgeted Reserve, and that the treasurer, with the approval of the Selectmen, be authorized to borrow the sum of \$1,900,000 as authorized under the Community Preservation

A TRUE COPY

Attest Adam Phelan

Town Clerk

Boxford, Massachusetts

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Program pursuant to Massachusetts General Laws, Chapter 44 section 7, Chapter 44B section 11, and/or any other enabling authority; and to authorize the Board of Selectmen to grant conservation restrictions or other such perpetual restrictions, approve use restrictions, as may be permitted pursuant to the Community Preservation Act, on all or any portion of said parcel; seek, receive and accept grants, donations or reimbursements for this purpose and/or any others in any way connected with the scope of this Article, and to enter into all agreements and execute any and all instruments as may be necessary on behalf of the Town of Boxford to affect said purchase.

ARTICLE 14. To see if the Town will vote to appropriate the sum of \$720,000, or any other amount, to preserve the historic Lincoln Hall, Main Street, West Boxford Center; including all costs incidental and related thereto; said rehabilitation expenses as necessary for Lincoln Hall to continue to serve as a community meeting place, including but not limited to improvements needed to meet modern codes such as installing insulation, new heating and air conditioning systems, insulating doors and windows, installing handicapped lift and bathrooms, and updating the electrical system, and that to fund such rehabilitation, \$25,000 shall be appropriated from the Community Preservation Committee Historic Resources Reserve, \$20,000 shall be transferred from the '08 Budgeted Reserve, and the treasurer, with the approval of the Selectmen shall be authorized to issue debt in the amount of \$675,000 under the Community Preservation Program for the rehabilitation of historic resource pursuant to Massachusetts General Laws, Chapter 44B or any other enabling authority, said funds to be expended under the direction of the Community Preservation Committee and the Board of Selectmen or to take any other action thereon.

Sponsored and supported by the Board of Selectmen, Lincoln Hall Building Committee and the Community Preservation Committee
Community Preservation Committee recommends adoption of this article
Finance Committee recommends adoption of this article
Capital Budgeting Committee Recommendation: "D" Does not recommend

Upon a motion made and duly seconded, it was VOTED by a greater than 2/3 voice vote to call the vote on article 14.

Upon a motion made and duly seconded, it was VOTED by a greater than 2/3 voice vote to appropriate the sum of \$698,000 to preserve the historic Lincoln Hall, Main Street, West Boxford Center; including all costs incidental and related thereto; said rehabilitation expenses as necessary for Lincoln Hall to continue to serve as a community meeting place, including but not limited to improvements needed to meet modern codes such as installing insulation, new heating and air conditioning systems, insulating doors and windows, installing handicapped lift and bathrooms, and updating the electrical system, and that to fund such rehabilitation, \$25,000 shall be appropriated from the Community Preservation Committee Historic Resources Reserve.

Exhibit C-2 - Town Meeting Votes of May 11, 2010 (Page 1)

A TRUE COPY

Attest John Phelan

Town Clerk

Boxford, Massachusetts

Sponsored and supported by the Border to Boston Trail Committee
Finance Committee to make recommendation at Town Meeting
Board of Selectmen recommends adoption of this article.

Upon a motion made and duly seconded it was VOTED by a greater than two-thirds show of hands to move the question.

Upon a motion made and duly seconded it was VOTED by a majority show of hands to appropriate \$86,000 from the Undesignated Community Preservation Fund Balance the town's portion of the Design Phase of the Border to Boston/North Recreational Trail for the purpose of completing final design and other developmental activities associated with the Boxford section of the former Newburyport Branch right of way; said funds to be expended under the direction of the Community Preservation Committee; or take any other action thereon.

ARTICLE 12. To see if the Town will vote to authorize the Board of Selectmen to divide, and to grant restrictions meeting the requirements of M.G.L. ch. 44B, section 12(a) on a portion of the property located on Middleton Road and shown as Parcel 2 on a plan entitled "Plan of land in Boxford, MA property of Charles W. Haynes, Trustee Elmlea Partnership Trust" scale 1" = 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, Page 149, for purposes authorized pursuant to the Community Preservation Act (M.G.L. ch. 44B), as follows:

Land Use Area 1, the approximate boundaries of which are shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), containing 36.154 acres, more or less, to be transferred from the care, custody and control of the Board of Selectmen as currently held for one or more of the purposes authorized under the Community Preservation Act to the care, custody and control of the Boxford Conservation Commission to be used for conservation and open space purposes, and to authorize the Board of Selectmen to grant a perpetual conservation restriction to BTA/BOLT, Inc. or other similar non-profit group limiting the use of those portions of the Land Use Area 1 identified as Area "F" on said plan to conservation and open space purposes as shown on the Restriction Plan;

or take any other action thereon.

Sponsored and supported by the Board of Selectmen and
Community Preservation Committee

Haynes Land Advisory Committee recommends adoption of this article

Upon a motion duly made and seconded it was VOTED by a greater than two-thirds voice vote to authorize the Board of Selectmen to divide and to grant restrictions meeting the requirements of M.G.L. ch. 44B, section 12(a) on a portion of the property located on Middleton Road and shown as Parcel 2 on a plan entitled "plan of Land in Boxford, MA property of Charles W. Haynes, Trustee Elmlea Partnership Trust" scale 1"=100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by order of Taking recorded with Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book

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A TRUE COPY

Attest Rodney Phelan

Town Clerk

Boxford, Massachusetts

27401, Page 149, for purposes authorized pursuant to the Community Preservation Act (M.G.L. ch. 44B), as follows:

Land Use Area 1, the approximate boundaries of which are shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), containing 36.154 acres more or less, to be transferred from the care, custody and control of the Board of Selectmen as currently held for one or more of the purposes authorized under the Community Preservation Act to the care, custody and control of the Boxford Conservation Commission to be used for conservation and open space purposes, and to authorize the Board of Selectmen to grant a perpetual conservation restriction to BTA/BOLT, Inc. or other similar non-profit group limiting the use of those portions of the Land Use Area 1 identified as Area "F" on said plan to conservation and open space purposes as shown on the Restriction Plan;

ARTICLE 13. To see if the Town will vote to authorize the Board of Selectmen to divide, and to grant restrictions meeting the requirements of M.G.L. ch. 44B, section 12(a) on a portion of the property located on Middleton Road and shown as Parcel 2 on a plan entitled "plan of Land in Boxford, MA property of Charles W. Haynes, Trustee Elmlea Partnership Trust" scale 1"= 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres. Acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, page 149, for purposes authorized pursuant to the Community Preservation Act (M.G.L. ch. 44B), as follows:

Land Use Area 2, the approximate boundaries of which are shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), containing 25.961 acres more or less, to be transferred from the care, custody and control of the Board of Selectmen as currently held for one or more of the purposes authorized under the Community Preservation Act to the care, custody and control of the Board of Selectmen, to be used for recreational uses, and to authorize the Board of Selectmen to grant a perpetual restriction to the Boxford Athletic Association or other similar non-profit group limiting the use of those portions of Land Use Area 2 shown on the Restriction Plan as restricted area "G" to recreational purposes, and to authorize the Board of Selectmen to grant a perpetual restriction to the BTA/BOLT, Inc. or other similar non-profit group limiting the use of those portions of Land Use Area 2 shown as all or a portion of restricted areas "A", "B", and "C" to conservation and open space purposes as shown on the Restriction Plan;

or to take any other action thereon.

Sponsored and supported by the Board of Selectmen and
Community Preservation Committee

Haynes Land Advisory Committee recommends adoption of this article

Upon a motion made and duly seconded it was VOTED by a greater than two-thirds hand count to move the question.

Upon a motion made and duly seconded it was VOTED by a greater than two-thirds hand count (Yes 256, No 86) to authorize the Board of Selectmen to divide, and to grant restrictions

Exhibit C-2 - Town Meeting Votes of May 11, 2010 (Page 3)

A TRUE COPY

Attest Raun Phelan

Town Clerk

Boxford, Massachusetts

meeting the requirements of M.G.L. ch. 44B, section 12(a) on a portion of the property located on Middleton Road and shown as Parcel 2 on a plan entitled "Plan of Land in Boxford, MA property of Charles W. Haynes, Trustee Elmlea Partnership Trust" scale 1" = 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc., and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, page 149, for purposes authorized pursuant to the Community Preservation Act (M.G.L. ch. 44B), as follows:

Land Use Area 2, the approximate boundaries of which are shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), containing 25,961 acres more or less, to be transferred from the care, custody and control of the Board of Selectmen, to be used for recreational uses, and to authorize the Board of Selectmen to grant a perpetual restriction to the Boxford Athletic Association or other similar non-profit group limiting the use of those portions of Land Use Area 2 shown on the Restriction Plan as restricted area "G" to recreational purposes, and to authorize the Board of Selectmen to grant a perpetual restriction to the BTA/BOLT, Inc., or other similar non-profit group limiting the use of those portions of Land Use Area 2 shown as all or a portion of restricted areas "A", "B", and "C" to conservation and open space purposes as shown on the Restriction Plan;

ARTICLE 14. To see if the Town will vote to authorize the Board of Selectmen to divide, and to grant restrictions meeting the requirements of M.G.L. ch.44B, section 12(a) on a portion of the property located on Middleton Road and shown as Parcel 2 on a plan entitled "plan of Land in Boxford, MA property of Charles W. Haynes, Trustee Elmlea Partnership Trust" scale 1" = 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, Page 149, for purposes authorized pursuant to the Community Preservation Act (M.G.L. ch.44B), as follows:

Land Use Area 3, the approximate boundaries of which are shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan; dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), containing 13.4 acres more or less, to be transferred from the care, custody and control of the Board of Selectmen as currently held for one or more of the purposes authorized under the Community Preservation Act to the care, custody and control of the Board of Selectmen to be used for community housing; and to authorize the Board of Selectmen to prepare an affordable housing restriction to be placed upon the property limiting the use of those portions of Land Use Area 3 shown on the Restriction Plan as restricted area "H" to community housing purposes; and to authorize the Board of Selectmen to grant a perpetual restriction to the BTA/BOLT, Inc. or other similar non-profit group limiting the use of those portions of Land Use Area 3 shown as all or a portion of restricted areas "D" and "E" to conservation and open space purposes as shown on the Restriction Plan;

or to take any other action thereon.

Sponsored and supported by the Board of Selectmen and
Community Preservation Committee
Haynes Land Advisory Committee recommends adoption of this article

Exhibit C-3 - Town Meeting Vote of May 14, 2011

A TRUE COPY

Attest Ramon Phelan

Town Clerk

Boxford, Massachusetts

include the restoration and rehabilitation of the kitchen in the historic Lincoln Hall and associated construction oversight expenses and to approve the expenditure of \$24,999 for such purpose, said funds to be expended under the direction of the Board of Selectmen and the Community Preservation Committee.

ARTICLE 18. To see if the Town will vote to authorize the Board of Selectmen to grant a perpetual restriction to the BTA/BOLT, Inc. or other similar non-profit group limiting the use of all or a portion of Restricted Area D and Restricted Area E in Land Use Area 3 to conservation and open space purposes as shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), said areas being a portion of a property located on Middleton Road known as the "Haynes Land" and shown as Parcel 2 on a plan entitled "Plan of Land in Boxford, MA property of Charles W. Haynes, Trustee of Elmlea Partnership Trust" scale 1" = 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, Page 149, or to take any other action thereon.

Sponsored and supported by the Board of Selectmen and Community Preservation Comm.
Haynes Land Advisory Committee recommends adoption of this article

Upon motion made and duly seconded it was voted by a greater than two-thirds voice vote to authorize the Board of Selectmen to grant a perpetual restriction to the BTA/BOLT, Inc. or other similar non-profit group limiting the use of all or a portion of Restricted Area D and Restricted Area E in Land Use Area 3 to conservation and open space purposes as shown on a plan filed in the Town Clerk's office entitled "Conservation Restriction and Use Area Plan" dated April 8, 2010 prepared by Donohoe and Parkhurst, Inc., (the "Restriction Plan"), said areas being a portion of a property located on Middleton Road known as the "Haynes Land" and shown as Parcel 2 on a plan entitled "Plan of Land in Boxford, MA property of Charles W. Haynes, Trustee of Elmlea Partnership Trust" scale 1" = 100' dated November 12, 2007 made by Donohoe and Parkhurst, Inc. and recorded with Essex South District Registry of Deeds in Plan Book 411, Plan 10, containing 75.515 acres, acquired by the Town by Order of Taking recorded with Registry of Deeds in Book 27401, Page 149

ARTICLE 19. To see if the Town will vote to accept the following road described below, as a public way, including any appurtenant easements and to authorize the Board of Selectmen to acquire any necessary easements by gift: said plans on file with the Town Clerk:

Eagle's Nest Lane in its entirety, from Station 0+00 to 6+48.32 as shown on a plan entitled, "As-Built Plan of Eagle's Nest Lane in Boxford, MA", prepared for Powderhill Development Corp., dated November 2, 2010 and prepared by Hancock Survey Associates, Inc., recorded at the Essex South Registry of Deeds at Plan Book 427 and Page 88.

or take any other action thereon.

Sponsored by the Planning Board

Upon motion made and duly seconded it was voted by unanimous voice vote to accept the following road described below, as a public way, including any appurtenant easements and to authorize the Board of Selectmen to acquire any necessary easements by gift: said plans on file with the Town Clerk: